

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1542 of 1996 with
Civil Revision No. 1545 of 1996

Md. Sayed Ali

..... Petitioner in both the Civil Revisions

-Versus-

Naimuddin being dead his heirs: 1(a) Doctor Md.
Ibrahim Hossain and others

.....Opposite Parties in both the Civil Revisions

Mr. Azizul Islam, Advocate

..... For the Opposite Party

Heard and **Judgment on 26.07.2016.**

The facts and circumstances of both the Civil Revisions are similar, as such, both are taken up together for delivery of judgment by the common judgment.

At the instant of the opposite party-appellant-petitioner Md. Sayed Ali, this Rule in Civil Revision No. 1542 of 1996 was issued on 09.06.1996 calling upon the opposite parties 1 and 2 to show case as to why the judgment and order dated 11.01.1996 passed by the District Judge, Nilphamari in Misc. Appeal No. 59 of 1995 affirming the judgment and order dated 15.10.1995 passed by the sub ordinate judge, Court No. 2, Nilphamari in Miscellaneous Case No. 13 of 1994 should not be set-aside and/or such other or further order or orders passed as to this court may seem fit and proper.

The relevant facts for disposal of this Rule, inter-ala, are that the present pre-emptor-opposite party as the petitioner filed a pre-emption case

being the Miscellaneous Case No. 30 of 1994 stating that one of Ainuddin was the owner of 1.50 acres of land was sold 0.35 acres of land and died leaving behind his wife Sairun, one daughter Zinnat and brother Anser who inherited land measuring 1.35 acres and out of the said measurement of land, $43\frac{1}{8}$ acres of land was inherited by his brother Anser Uddin who died leaving behind two sons Namiuddin and Tofail Uddin inheritance the said measurement of land. The aforementioned daughter of Ainuddin namely Zinnat sold land measuring 1.15 acres to the present petitioner Md. Sayed Ali, by the deed dated 13.11.1993 without serving any notice upon the Co-sharer being way of inheritance. Thus the present opposite party Naimuddin filed Miscellaneous Case under Section 96 of the State Acquisition and Tenancy Act.

The said case was contested by the present pre-emptee-opposite party-petitioner, Md. Sayed Ali, by filing a written objection contending that the land was purchased by him with full knowledge and consent of the other co-shearer who are filed the Miscellaneous Case. It is also contained that Tk. 5,00,000/- have already been spent for the development of the land. It is further contended that the petitioner of the Miscellaneous Case was not a co-sharer by purchase in the same Khatain and for that purpose he filed another Case being Miscellaneous Case No. 11 of 1994.

At the instance of the pre-emptor-appellant-petitioner Md. Sayed Ali, the Rule was issued in the Civil Revision No. 1545 of 1996 on 09.06.1996 calling upon the opposite parties 1 and 2 to show case as to why the judgment and order dated 11.01.1996 passed by the District Judge, Nilphamari in Miscellaneous Appeal No. 58 of 1995 affirming the

judgment and order dated 15.10.1995 passed by the sub ordinate judge, Court No. 2, Nilphamari in Misc. Case No. 11 of 1994 should not be set-aside and/or such other or further order or orders passed as to this court may seem fit and proper.

The relevant facts for disposal of this Rule, inter-alia, are that the present petitioner, Md. Sayed Ali, filed a pre-emption case being Miscellaneous Case No. 11 of 1994 stating that the originally the case land measuring 1.50 acres was owned by Ainuddin, who sold 0.35 acres of land to the different persons and eventually the land was purchased by the present petitioner thus he became a co-sharer within the same Khatain. The daughter of said Ainuddin namely Zinnutun claimed to have inherited suit land from the said Ainuddin measuring 1.15 acres. The said Zinnatun transferred 1.15 acres of land to her sons by a registered deed of Heba bill Ewas, and said sons transferred the land to the opposite party No. 1 by a registered deed of sale on 30.12.1993. The present petitioner as the opposite party in the case contended by filing a written objection controverting statement made in the Miscellaneous Case stating that he has filed a separate case as the pre-emptee of the case land being Miscellaneous Case No. 13 of 1994.

After hearing the parties and the basis of the above given factual aspects the learned the then Subordinate Judge, Court No. 2, Nilfamari, taken both the Miscellaneous cases analogously and after considering evidences dismissed the pre-emption case No. 11 of 1994 filed by the present petitioner and allowed the Miscellaneous Case No. 13 of 1994 field by the present opposite parties Naimuddin, (being died by his legal heirs in

both the Revisional Application being Doctor Md. Ibrahim Hossain and others) by a single Judgment and order dated 16.10.1995.

Being aggrieved the present petitioner preferred the Miscellaneous Appeal No. 58 of 1995 and Miscellaneous Appeal No. 59 of 1995 in the Court of the learned District Judge, Nilphamari, who dismissed both the appeals by a single Judgment and order dated 11.01.1996. This two revisional applications being C.R. No. 1542 of 1996 and C.R. No. 1545 of 1996 have been filed challenging the said judgment and order and the Rules were issued thereupon.

No one appears to support the Rules despite the fact that the matters have been appearing in the cause list for a long period of time.

However, in the Revisional Applications the present petitioner taken the ground that the learned courts below have committed illegality and acted with material irregularity appear on the face of the record resulting in an error in the decision occasioning failure of justice in dismissing the pre-emption case filed by the petitioner and the learned Appellant without discussing the evidence and considering materials on record and without applying his judicial mind has affirmed the judgment and order of the trial court and as such committed error of law occasioning failure of justice.

The Rules has been opposed by the present opposite parties.

Mr. Azizul Islam, the learned Advocate appears for the both the Rules submits the learned Trial Court after hearing both the Miscellaneous Cases given Judgment in favour of the present opposite parties after examining all the relevant documents and papers, which were affirmed by the Appellate Court analogously, therefore, this two Rules have been

obtained by the present petitioner misleading the court as to the information and documents of these appeals thus the Rules should be discharged.

The learned Advocate further submits that, in the C.R. No. 1542 of 1996, the land was purchased by the opposite party No. 2 within the knowledge of the pre-emptor as per the requirement of section 96 of the State Acquisition and Tenancy Act. In the C.R. No. 1545 of 1996 the above provision of section 96 of the Act, 1950 has also considered by the learned Trial Court and the Appellate Court below for creation of right as the pre-emptor and rejected the prayer made by the present petitioner to have been created any right claimed by the petitioner thus the present petitioner acquired no right either as a pre-emptee or a pre-emptor but the present petitioner is only interested to the claim of Tk. 5,00,000/- thus does not have any right under section 96 of the State Acquisition and Tenancy Act, thus these Rules do not merit any further consideration.

Considering above submissions made by the learned Advocate appearing for the present opposite party and considering the Revisional Application under section 115 of Code of Civil Procedure along with the annexures therein, in particular, the impugned Judgment passed by the Appellate Court below and also considering the Lower Court Record, it appears to me that the present Petitioner Md. Sayed Ali, filed the Miscellaneous Case No. 11 of 1994 claiming a right of pre-emption against the purchaser pre-emptee on transfer by a sale deed of the land in the same Khatain. On the other hand, one Md. Naimuddin filed the Miscellaneous Case No. 13 of 1994 as the pre-emptee claiming that he purchased the case

land within the knowledge and consent of the other co-sharers of the land. Therefore, no right of pre-emption created in favour of the present petitioner Md. Sayed Ali.

Form the above given facts, it appears to me that the present petitioner claimed as a pre-emptor of the case land whereas the opposite parties as the pre-emptee purchaser could successfully prove their right upon the same case land, therefore, the present petitioner failed any right as he could not prove as the pre-emptor under the provisions of section 96 of the State Acquisition and Tenancy Act. Therefore, both the court below concurrently found against the present petitioner Md. Sayed Ali. Moreover, the Rules have been pending in this court for 20 (twenty) years but the petitioner in both the Rules have failed to make the rule heard in such a long period of time which is absolutely undesirable as it caused delay in disposal of the Rules issued by this court.

The land Trial Court come to its conclusion by finding in the following manner:

“১নং প্রতিপক্ষ দাবী করিয়া-ছ -য, মামলার জমি-ত তাহার গোড়াউন তৈরী করি-ত প্রায় ৫ লক্ষ টাকা খরচ হইয়া-ছ ও সে উহা পাই-ত অধিকারী। ১ নং প্রতিপক্ষ উভয় মামলায় সে লিখিত জবাব দিয়া-ছ। উহা-ত গোড়াউন নির্মাণ বাব-দ খরচার বর্ণনা একই রকম ন-হ। ১১/৯৪ মিস মামলায় ১নং প্রতিপক্ষ ৫,০০,০০০/- টাকা ও ১৩/৯৪ নং মিস মামলায় ৩,৬৫,০০০/- টাকা খরচের দাবী করে। তাই উক্ত খরচ বিষয়ে ১নং প্রতিপক্ষের দাবী স্ববি-রাধী হই-ত-ছ। ইহা ছাড়া মামলার জমিটি কৃষি জমি প্রকৃতির। কৃষি কা-র্যর জন্য উন্নতি ক-ল্প ১নং প্রতিপক্ষ কোনরূপ খরচ ক-র নাই। সেই কার-ণ ১নং প্রতিপক্ষ মামলার জমির উন্নয়ন বাব-দ কোন খরচ পাই-ত পা-র না। ১নং প্রতিপক্ষ মামলার জমি-ত কোন নির্মাণ কাজ করিয়া থাকি-লও সে উহা নিজ খর-চ অপসারণ করিয়া লইতে পারিবে। মতেই অত্র নির্ধারণী বিষয় ১নং প্রতিপক্ষের বিপক্ষে ও ১৩/৯৪ নং মিস মামলার প্রার্থী প-ক্ষ স্থির হয়।

ফ-ল ১৩/৯৪ নং মিস মামলার প্রার্থী পক্ষ কৃতকার্য হয়। ১১/৯৪ নং মিস মামলার প্রার্থীপক্ষ অকৃতকার্য হয়।”

The learned Appellant Court concurrently found against the present petitioner on the basis of the following finding:

“১নং প্রতিপক্ষ রেসপ-ডন্ট যোগসাজ-স, নিজ অর্থ দিয়া ওয়ারেশ সুত্রে স্বত্বাধিকারী নৈমুদ্দিনকে দিয়া ১৩/৯৫ নং মোং মোকাদ্দমা করিয়াছেন তাহা প্রমাণ করিতে প্রার্থী আপীলকারী সর্মর্থন নাই।

উপরোক্ত আলোচনা অনুসারে দেখা যায় যে, বিজ্ঞ নিম্ন আদালত ১১/৯৫ নং মোং মোকাদ্দমা, মঞ্জুর করিয়া ও ১১/৯৫ নং মোং মোকাদ্দমা না মঞ্জুর করিয়া সঠিক কার্য করিয়াছেন। উক্ত রায় ও আদেশ বহাল থাকিবে। বিচার্য বিষয়গুলি যথা রীতি নিষ্পত্তি করা গেল।”

After examining all the relevant documents and Exhibits in this Miscellaneous Cases and the concurrent Judgment passed by the Courts below, I do not consider that there are any infirmities in the Judgments and order passed by the Trial Court which have been affirmed by the appellate Court by the impugned Judgment and order, therefore, committed no illegally and there are no misreading and non consideration of relevant documents and evidence, therefore, I am not inclined to interfere in the impugned Judgment.

Accordingly, I do not find any merit in the Rules.

In the result, the Rules are discharged.

The office is directed to communicate the judgment and order to the concerned courts below and persons and also directed to send down the Lower Court Record immediately.